General Services Administration (GSA)
Public Buildings Service (PBS)

Combined Synopsis/Solicitation: 47PD5526Q0051

Requirement Title & Location: Federal Highway Office Renovations, Carson City Federal Building

Issued Date: September 8, 2026

Issued By: General Services Administration, Public Buildings Service, Project Delivery Contracting, Pacific Northwest and Southwest Division

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REQUEST FOR QUOTE (RFQ) INFORMATION AND INSTRUCTIONS FOR PREPARATION OF QUOTATIONS

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with Federal Acquisition Regulation (FAR) Part 12. This announcement constitutes the only solicitation. Quotes are being requested and a separate written solicitation will not be issued.

For the purpose of this RFQ, the terms 'Offer' and ‘Contract’ are considered synonymous with 'Quote’ and ‘Purchase Order’. Any reference to 'Offeror' or 'Offer' within this document, including any attached clauses or provisions, should be interpreted as referring to the entity submitting a 'Quote' and the 'Quote' itself in response to this RFQ.

Contracting Office	General Services Administration, Public Buildings Service, Project Delivery Contracting, Branch Pacific Northwest and Southwest Division
Contracting Officer (CO)	Kasey Wilkie, kasey.wilkie@gsa.gov
Contract Specialist (CS)	Erica Lal, erica.lal@gsa.gov
Submission Method	Electronically via email to the Contracting Officer at kasey.wilkie@gsa.gov
Site Walk	**Tuesday, September 22, 2026 at 9:00 AM Pacific Time** **RSVP by September 21, 2026, 4:00 PM Pacific Time at:** **https://forms.gle/39suHGsDJ3WgDcRH8**
Questions Due	**Tuesday, September 29, 2026 at 4:00 PM Pacific Time at:** **https://forms.gle/HfTGzjE8mBZrrazy9**
Quotes Due	**Wednesday, October 14, 2026 at 4:00 PM Pacific Time**
Notice Type	Combined Synopsis/Solicitation
Title	Federal Highway Office Renovations
Solicitation Number	47PD5526Q0051
Solicitation Type	Request for Quotation
Description	Provide several modifications and upgrades to office 225 and office wide systems. See full scope of work.
Contract Type	Firm-Fixed Price
Service Type	Construction
Set-Aside	This acquisition is a total small business set-aside
NAICS	236220
PSC	Z2AA
Place of Performance	Carson City Federal Building, 705 N Plaza St, Carson City, NV 89701
Period of Performance	60 Calendar Days from Notice to Proceed
Attachments	Attachment A_SF1442 Attachment B_Scope of Work “FHWA Carson Office Renovation” dated 6/9/2026 Attachment C_Wage Determination NV20260090

A responsible Quoter is one whose quote conforms to the solicitation and will be most advantageous to the Government. It is the Quoter’s responsibility to be familiar with applicable clauses and provisions. FAR Provisions and Clauses may be viewed and/or downloaded from https://www.acquisition.gov/far-overhaul/far-part-deviation-guide.

It is the responsibility of all interested vendors to check sam.gov for any Amendments or Questions and Answers.

NOTICE: This solicitation does not guarantee that an award will be made. Any resulting award is subject to the availability of funds and at the discretion of the awarding entity.

Additional Project Information/Requirements

Estimated Value	Price range is between $50,000 and $100,000.
Insurance Requirements	FAR (RFO) 52.228-5 Insurance-Work on a Government Installation (JAN 1997) - Must be provided to GSA within 10 days of award. (a) The Contractor shall, at its own expense, provide and maintain during the entire performance of this contract, at least the kinds and minimum amounts of insurance required in the Schedule or elsewhere in the contract. (b) Before commencing work under this contract, the Contractor shall notify the Contracting Officer in writing that the required insurance has been obtained. The policies evidencing required insurance shall contain an endorsement to the effect that any cancellation or any material change adversely affecting the Government's interest shall not be effective- (1) For such period as the laws of the State in which this contract is to be performed prescribe; or (2) Until 30 days after the insurer or the Contractor gives written notice to the Contracting Officer, whichever period is longer. (c) The Contractor shall insert the substance of this clause, including this paragraph (c), in subcontracts under this contract that require work on a Government installation and shall require subcontractors to provide and maintain the insurance required in the Schedule or elsewhere in the contract. The Contractor shall maintain a copy of all subcontractors' proofs of required insurance, and shall make copies available to the Contracting Officer upon request. (End of clause)
Bonding Required	FAR (RFO) 52.228-13 Alternative Payment Protections (JULY 2000) (a) The Contractor shall submit one of the following payment protections: Payment Bond (preferred), Irrevocable Letter of Credit (b) The amount of the payment protection shall be 100 percent of the contract price. (c) The submission of the payment protection is required within 10 days of contract award. (d) The payment protection shall provide protection for the full contract performance period plus a one-year period. (e) Except for escrow agreements and payment bonds, which provide their own protection procedures, the Contracting Officer is authorized to access funds under the payment protection when it has been alleged in writing by a supplier of labor or material that a nonpayment has occurred, and to withhold such funds pending resolution by administrative or judicial proceedings or mutual agreement of the parties. (f) When a tripartite escrow agreement is used, the Contractor shall utilize only suppliers of labor and material that signed the escrow agreement. (End of clause)

Instructions for Preparation of Quotations

Addendum to FAR 52.212-1 Instructions to Offerors—Commercial Products and Commercial Services

It is the Quoter's sole responsibility for ensuring quotes and related email correspondence reach the specified Contracting Officer and Contract Specialist by the due date. Offerors should contact the Contracting Officer and Contract Specialist before the due date to confirm receipt of quotes. Late offers may be ineligible for consideration/evaluation. Offerors must disclose any potential, actual, or apparent Organizational Conflicts of Interest.

Questions Submission: Submit all questions via the Google form listed on page 3 of this solicitation, no later than the due date and time specified on page 3 of this solicitation. Proprietary or confidential information should be excluded from Quoters' questions and subsequent responses, as this information may be made public in a formal amendment.

Quote Submission: Submit your quote via email to the Contracting Officer and the Contract Specialist listed on page 3 of this solicitation, no later than the due date and time specified on page 3 of this solicitation. Emails must not exceed 25MB; multiple emails are permitted. If multiple emails are required, they shall be identified in sequence (1 of 3, 2 of 3, etc.). Submissions/Documents must not contain security restrictions, such as password protection, that would prevent the Government from distributing and printing them. Additionally, marketing materials or letters of support/recommendation are prohibited. Quotations not submitted by the closing time will not be considered. Quoters must confirm receipt with the Contracting Officer and Contract Specialist (listed on page 3), if confirmation is not received.

Communication: All communication must be via email to the identified Contracting Officer and Contract Specialist listed on page 3 of this solicitation. Contacting any other Government personnel regarding this solicitation is prohibited and may result in an Organizational Conflict Of Interest (OCI), leading to exclusion from competition and award.

Quotation Packet Organization

Email Subject Line: "RFQ - 47PD5526Q0051 - [Firm Name]".

Format/Length: All quotes must be submitted in PDF format and separated by the volumes listed below.

The Quoter must submit the volumes listed below. Each volume shall be clearly labeled and shall comply with the page limits and formatting instructions in this solicitation. Submission of quote must include the following volumes:

Volume	Page Limit
Volume I, SF1442	-
Volume II, Technical Approach	2 Page Limit
Volume III, Experience on Similar Projects	2 Page Limit

Volume IV, Price Breakdown	-
Volume V, Acknowledgement of Amendments (if applicable)	-
Volume VI, Representation and Certifications (if applicable)	-

All proprietary information shall be clearly and properly marked. Annexes, documentation, or attachments not specifically required count toward page limitations (where applicable), unless otherwise indicated in the specific volume instructions.

All information must be confined to the appropriate volume/file. Submissions should be limited to essential matters that define the quote and allow for adequate evaluation. Offerors must include sufficient, concise details for a complete and accurate evaluation.

NOTE: Failure to furnish all information required above may result in your quotation being considered non-responsive and eliminated from further consideration.

The timeliness of a quote is determined by the date and time of receipt. It is the Quoter's responsibility to ensure that the quotation submission email is received by the designated cut-off date and time. Early submission is encouraged.

This is an electronic procurement. Hard copies will not be accepted. Please reference the RFQ number in the subject line of any e-mails related to this procurement.

(End of Addendum to FAR 52.212-1)

FAR 52.212-1 Instructions to Offerors—Commercial Products and Commercial Services

(a) *Submission of offers*. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

(1) The solicitation number;

(2) The name, address, telephone number of the Offeror;

(3) The Offeror’s Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;

(4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;

(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers*. The Offeror agrees to hold the prices in its offer firm for **90** calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers*.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is “late” and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror’s initial offer should contain the Offeror’s best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) *Debriefings*. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency’s evaluation of the significant weak or deficient factors in the debriefed Offeror’s offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

Award and Evaluation Information

The Government may make an award without discussions. Accordingly, Quoters are encouraged to submit their best quotes (technical and price) with their initial submission.

The Government reserves the right to:

- Conduct clarifications to address minor administrative or clerical issues;
- Waive minor informalities or irregularities;
- Conduct communications/discussions at the Government's discretion; and
- Reject any or all submissions when it is in the Government's interest.

The Government's evaluation will consider only:

- Information provided in the submission (including attachments required by this solicitation), and
- Past performance information available to the Government from Government sources (e.g., CPARS or successor systems), as applicable.

The Government may remove from further consideration any submission that fails to meet material solicitation requirements or omits required information.

The Government may consider whether the proposed price is consistent with the Quoter's technical and management approaches.

A Quoter without relevant similar experience will not be evaluated favorably or unfavorably; however, the Government's confidence may be limited due to the absence of performance history.

FAR 52.212-2 Evaluation—Commercial Products and Commercial Services

Award will be made in accordance with the basic contract ordering procedures and the procedures specified in the RFQ, to the Offeror whose quote results in the best value to the Government. IAW RFO FAR 12.203 (c) (2), the evaluation procedures for this solicitation are comparative evaluation. Offerors must be deemed responsible IAW FAR 9.1, as supplemented, whose quote conforms to the RFQ's requirements (to include all stated terms, conditions, representations, certifications, and all other information required by the RFQ instructions).

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

See Appendix A.

(b) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

SCHEDULE OF SERVICES AND SUPPLIES

Please see Attachment A: SF 1442

PERFORMANCE WORK STATEMENT

Please see Attachment B: Scope of Work

PROVISIONS AND CLAUSES

Provisions

FAR 52.252-1 Solicitation Provisions Incorporated by Reference applies to this solicitation. This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52.

*Contractors do not need to submit provisions that include blocks for offeror completion if such clauses are already included in offeror's SAM entity registration and are applicable to this solicitation. Contractors submitting provisions shall submit this requirement as Volume VI.

Provision Number	Provision Name
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements—Representation
52.204-7	System for Award Management—Registration
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations—Representation
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law
52.212-1	Instructions to Offerors—Commercial Products and Commercial Services
52.212-2	Evaluation—Commercial Products and Commercial Services
52.216-1	Type of Contract: *"Firm Fixed Price"*
52.219-1	Small Business Program Representations
52.222-5	Construction Wage Rate Requirements—Secondary Site of the Work,
52.222-18	Certification Regarding Knowledge of Child Labor for Listed End Products
52.223-1	Biobased Product Certification
52.223-4	Recovered Material Certification
52.225-2	Buy American Certificate
52.225-10	Notice of Buy American Requirement—Construction Materials
52.232-13	Notice of Progress Payments
52.240-90	Security Prohibitions and Exclusions Representations and Certifications
52.252-1	Solicitation Provisions Incorporated by Reference

(End of provisions)

Clauses

FAR 52.252-2 Clauses Incorporated by Reference apply to this solicitation. This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):
https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52

Clause Number	Clause Name
52.203-17	Contractor Employee Whistleblower Rights
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements

52.204-9	Personal Identity Verification of Contractor Personnel
52.204-13	System for Award Management—Maintenance
52.204-19	Incorporation by Reference of Representations and Certifications
52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations
52.211-13	Time Extensions
52.212-4	Terms and Conditions—Commercial Products and Commercial Services
52.219-28	Postaward Small Business Program Rerepresentation
52.222-3	Convict Labor
52.222-6	Construction Wage Rate Requirements
52.222-7	Withholding of Funds
52.222-8	Payrolls and Basic Records
52.222-9	Apprentices and Trainees
52.222-10	Compliance with Copeland Act Requirements
52.222-11	Subcontracts (Labor Standards)
52.222-12	Contract Termination—Debarment
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations
52.222-14	Disputes Concerning Labor Standards
52.222-15	Certification of Eligibility
52.222-19	Child Labor—Cooperation with Authorities and Remedies
52.222-36	Equal Opportunity for Workers with Disabilities
52.222-50	Combating Trafficking in Persons
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026
52.222-62	Paid Sick Leave Under Executive Order 13706
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts
52.223-3	Hazardous Material Identification and Safety Data
52.223-5	Pollution Prevention and Right-to-Know Information
52.223-11	Ozone-Depleting Substances
52.223-12	Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners
52.223-23	Sustainable Products
52.224-3	Privacy Training
52.225-9	Buy American—Construction Materials

52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving
52.227-4	Patent Indemnity—Construction Contracts
52.228-5	Insurance—Work on a Government Installation
52.228-13	Alternative Payment Protections
52.228-14	Irrevocable Letter of Credit
52.228-15	Performance and Payment Bonds—Construction
52.232-5	Payments under Fixed-Price Construction Contracts
52.232-16	Progress Payments
52.232-17	Interest
52.232-18	Availability of Funds
52.232-23	Assignment of Claims
52.232-27	Prompt Payment for Construction Contracts
52.232-30	Installment Payments for Commercial Products and Commercial Services
52.232-33	Payment by Electronic Funds Transfer—System for Award Management
52.232-39	Unenforceability of Unauthorized Obligations
52.232-40	Providing Accelerated Payments to Small Business Subcontractors
52.233-1	Dispute
52.233-3	Protest After Award
52.233-4	Applicable Law for Breach of Contract Claim
52.236-2	Differing Site Conditions
52.236-3	Site Investigation and Conditions Affecting the Work
52.236-5	Material and Workmanship
52.236-6	Superintendence by the Contractor
52.236-7	Permits and Responsibilities
52.236-8	Other Contracts
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements
52.236-10	Operations and Storage Areas
52.236-12	Cleaning Up
52.236-13	Accident Prevention
52.236-14	Availability and Use of Utility Services
52.236-15	Schedules for Construction Contracts
52.236-21	Specifications and Drawings for Construction
52.240-91	Security Prohibitions and Exclusions

52.240-92	Security Requirements
52.240-92 with Alt II	Security Requirements (Alternate II)
52.240-93	Basic Safeguarding of Covered Contractor Information Systems
52.243-5	Changes and Changed Conditions
52.244-6	Subcontracts for Commercial Products and Commercial Services
52.245-1	Government Property
52.245-2	Government Property (Installation Operation Services)
52.245-9	Use and Charges
52.246-12	Inspection of Construction
52.247-34	F.o.b. Destination
52.252-2	Clauses Incorporated by Reference

Clause Number	Clause Name
552.204-9	Personal Identity Verification Requirements
552.211-10	Commencement, Prosecution, and Completion of Work
552.211-13	Time Extensions
552.211-70	Substantial Completion
552.212-4	Contract Terms and Conditions—Commercial Products and Commercial Services (DEVIATION FAR 52.212-4)
552.212-71	Contract Terms and Conditions Applicable to GSA Acquisitions of Commercial Products and Commercial Services
552.212-72	Contract Terms and Conditions Required To Implement Statutes or Executive Orders Applicable to GSA Acquisition of Commercial Products and Commercial Services
552.228-5	Government as Additional Insured
552.229-70	Federal, State, and Local Taxes
552.232-5	Payments under Fixed-Price Construction
552.236-6	Superintendence by the Contractor
552.236-11	Use and Possession Prior to Completion
552.236-15	Schedules for Construction Contracts
552.236-21	Specifications and Drawings for Construction
552.236-70	Authorities and Limitations
552.236-71	Contractor Responsibilities
552.236-72	Submittals

552.236-73	Subcontracts
552.237-73	Restriction on Disclosure of Information
552.243-71	Equitable Adjustments
552.246-72	Final Inspection and Tests

(End of clauses)

FAR 52.212-4 Terms and Conditions—Commercial Products and Commercial Services.

As prescribed in 12.205(b)(3), insert the following clause:

Terms and Conditions—Commercial Products and Commercial Services (GSA Class Deviation RFO-2025-12) (NOV 2025)

Note: this clause has been tailored/modified for use in commercial construction contracts.

(a) *Definitions*. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) *Inspection/Acceptance*. See FAR 52.246-12 (GSA Class Deviation RFO-2025-46), *Inspection of Construction* and GSAR 552.246-72, *Final Inspection and Tests*.

(c) *Assignment*. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (*e.g.,* use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes*. See FAR 52.243-5 (GSA Class Deviation CD-2025-43), *Changes and Changed Conditions* (when the contract amount is not expected to exceed the simplified acquisition threshold), FAR 52.243-4 (GSA Class Deviation CD-2025-43), *Changes* (contract amount is expected to exceed the simplified acquisition threshold), and GSAR 552.243-71, *Equitable Adjustments*.

(e) *Disputes*. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays*. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) Invoice. The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity*. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment*—

(1) *Items accepted*. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment*. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) *Discount*. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) *Overpayments*. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) *Interest*.(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate

shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions*. The Contracting Officer will issue a final decision as required by FAR part 33 if–

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(6) Construction Payment

(i) Progress payments, retainage, payment requests, and stored materials (including off-site stored materials when authorized) shall be administered in accordance with FAR 52.232-5 (GSA Class Deviation

RFO-2025-32), *Payments under Fixed-Price Construction Contracts*, and GSAR 552.232-5, *Payments under Fixed-Price Construction*.

(ii) Prompt payment due dates and "proper payment request/proper invoice" requirements shall be administered in accordance with FAR 52.232-27 (GSA Class Deviation RFO-2025-32), *Prompt Payment for Construction Contracts*, which governs notwithstanding any other payment terms.

(iii) For the purposes of payment, in the event of any inconsistency between FAR 52.212-4 and the construction payment clauses cited in FAR 52.212-4(6)(i) and (ii), the construction payment clauses take precedence.

(j) *Risk of loss*. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes*. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience*. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause*. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title*. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty*. See FAR 52.246-21 (GSA Class Deviation RFO-2025-46), Warranty of Construction.

(p) *Limitation of liability*. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts*. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence*. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services;

(2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) Other contract clauses incorporated in the solicitation or contract;

(4) Addenda to this solicitation or contract;

(5) Solicitation provisions incorporated in the solicitation;

(6) Other paragraphs of this clause;

(7) Other documents, exhibits, and attachments; and

(8) The specification.

(s) *Unauthorized obligations*.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an “I agree” click box or other comparable mechanism (e.g., “click-wrap” or “browse-wrap” agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) *Comptroller General examination of record*. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference*. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

APPENDIX A - Evaluation Factors

Factor 1. Technical Approach –

Evaluation of this factor will be based on the bidder's description of their technical approach to the project. Bidders are encouraged to provide detailed specific information. The bidder must submit a narrative describing their construction approach to execute the requirements of the RFQ. The Bidder shall also describe any improvements which they consider to be exceeding the RFQ requirements. Narrative should be no more than 2 pages.

Technical approach will be assessed based on how well the bidder's description of their technical approach:

- Meets requirements and indicates an exceptional approach and understanding of the requirements. This includes evaluating the clarity, completeness, and accuracy of the bidder's understanding, as well as the overall ingenuity and effectiveness of their proposed solution.
- Demonstrates a sound, logical, and feasible methodology for achieving the SOW objectives, including appropriate resource allocation, quality control measures, and clear work plans.
- Identifies work to be self-performed and activities which will be subcontracted.
- Effectively identifies and mitigates potential risks, demonstrating a proactive and well-thought-out strategy to ensure successful performance.
- The risk of unsuccessful performance is very low. The proposed approach, including its risk mitigation strategies, should instill high confidence in the Government that the Bidder will successfully execute the contract with minimal issues.

Factor 2. Experience on Similar Projects –

The Bidder must submit two project narratives (one page each) for projects of similar size, scope, and complexity as that set forth in the Statement Work that was completed within the past three years. The Bidder may rely on its own experience or that of its joint venture partner(s) and/or subcontractor(s) that will perform major or critical aspects of the requirement. The Bidder must submit the following data/information for the projects submitted:

- Project title;
- Project location (city, state);
- Awarding agency;
- Contract award date;
- Date of substantial completion;
- Dollar amount of contract at award;
- Scope narrative, including complexity and difficulty of the scope. (Include judicial space identification)

Recent projects are projects completed within the last three years from release (issue date) of this solicitation.

Relevant projects are projects that:
Demonstrate experience where the Prime Contractor utilized in-house resources to perform the roles of the full-time onsite key personnel and self-performing the management of relevant construction projects. Relevant scope is defined as projects of similar magnitude. The Government may give a higher consideration to demonstration of experience in completing projects that had the unique characteristics of the proposed project.

Factor 3. Price –

Price evaluation will be determined based on the total evaluated price (TEP). The TEP will be calculated as the sum of the quoted price. The price quote shall include quantities and prices for each construction work item IAW the SOW provided.

Price Breakdown: Contractor must provide a detailed price breakdown for all proposed costs. Breakdown shall separately identify labor and materials and must include, for each line item, the item description, labor hours, labor rates, material descriptions, material quantities, unit costs, and extended totals, as applicable.

Quote prices will be evaluated for reasonableness. Price reasonableness determines whether an Bidder's price is too high. Price reasonableness can be established through adequate price competition or through price analysis techniques.

All quotes with separately priced line items or subline items shall be analyzed to determine if the prices are unbalanced. If price analysis techniques indicate that a quote is unbalanced, the contracting officer shall consider the risks to the Government associated with the unbalanced pricing in determining whether to consult with a bidder to request a revision to the pricing. A quote may be rejected if the contracting officer determines that the lack of balanced pricing exists and the bidder refuses to correct the pricing.

Factor 4. Past Performance –

The Government reserves the right to review CPARS to evaluate successful past performance.